

SENATE No. 2512

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, May 1, 2025.

The committee on Senate Ways and Means to whom was referred the House Bill making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects (House, No. 4010); reports, recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text of Senate document numbered 2512. (Direct Appropriations: \$1,283,200,000.00)

For the committee,
Michael J. Rodrigues

SENATE No. 2512

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SECTION 1. To provide for supplementing certain items in the general appropriations act and other appropriation acts for fiscal year 2025, the sums set forth in section 2 are hereby appropriated from the Education and Transportation Innovation and Capital Fund established in section 2DDDDDD of chapter 29 of the General Laws, unless specifically designated otherwise in this act or in those appropriation acts, for the several purposes and subject to the conditions specified in this act or in those appropriations acts and subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30, 2025. All appropriations in this section shall not be subject to section 5D of chapter 29 of the General Laws. These sums shall be in addition to any amounts previously appropriated and made available for the purposes of those items.

SECTION 2.

TRANSPORTATION

Massachusetts Department of Transportation

1596-2405 MBTA Low-Income Fare Relief.....	\$20,000,000
1596-2427 MBTA Workforce-Safety Reserve.....	\$100,000,000

EXECUTIVE OFFICE OF EDUCATION

Department of Elementary and Secondary Education

7061-0012 Special Education Circuit Breaker..... \$58,000,000

Student Opportunity Act Investment Fund.....100%

SECTION 2A. The sums set forth in this section are hereby appropriated from the Education and Transportation Innovation and Capital Fund established in section 2DDDDDD of chapter 29 of the General Laws, unless specifically designated otherwise in this act, for the purposes and subject to the conditions specified in this section and subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30, 2025. All appropriations in this section shall not be subject to section 5D of said chapter 29. These sums shall be made available through the fiscal year ending June 30, 2028.

EXECUTIVE OFFICE OF EDUCATION

Office of the Secretary

1596-2513 For a grant program for capital improvements, long-term leasing of additional space and other initiatives necessary to build capacity and safely accommodate additional career technical education school opportunities; provided, that the funds shall be administered by the executive office of education in consultation with the Massachusetts School Building Authority and the executive office of labor and workforce development; provided further, that funds shall be made available to both vocational technical schools and comprehensive high schools; provided further, that in determining a process for awarding grants, the executive office shall prioritize meeting the workforce demands of regional employers,

37 reducing demonstrable waitlists at career and technical education schools and providing
 38 equitable access to career and technical skills training for students likely to pursue a career in
 39 their field of study; provided further, that not less than \$15,000,000 shall be expended for a pilot
 40 program for comprehensive high schools to support career and vocational technical annex
 41 buildings on comprehensive high school campuses; provided further, that career and vocational
 42 training offered within such annex buildings shall align with regional workforce demands;
 43 provided further, that the pilot program shall prioritize communities that: (i) have demonstrable
 44 waitlists for career and vocational technical programming; (ii) are taking meaningful steps to
 45 produce new housing; and (iii) have adopted best practices to promote sustainable housing
 46 development to be determined in consultation with the executive office of housing and livable
 47 communities; and provided further, that the executive office shall prioritize projects within this
 48 item that address disparities in opportunity gap data compiled by the department of elementary
 49 and secondary education and support student populations that (a) consist of high school juniors
 50 or seniors; (b) have not been accepted into a dedicated vocational school or program; (c)
 51 experience historically low admittance rates into vocation technical school districts; and (d)
 52 reside in the public school's district\$100,000,000

 53 1596-2517 For local one-time education projects.....\$100,000

 54 1596-2518 For capital and development costs for the Holocaust Legacy Foundation, Inc.
 55 to establish the Boston Holocaust Museum to provide interactive educational opportunities in the
 56 commonwealth, including, but not limited to, history and social science frameworks; provided,
 57 that funds may be used for: (i) exhibit buildout; (ii) accessibility; (iii) security infrastructure; and
 58 (iv) educational technology and curriculum..... \$5,000,000

59 Transitional Escrow Fund.....100%

60 Department of Elementary and Secondary Education.

61 1596-2514 For educational grants to reduce the waitlist for English for speakers of other
62 language services; provided, that funds shall be administered by the department of elementary
63 and secondary education in coordination with the Workforce Skills Cabinet established in
64 Executive Order No. 560, dated February 26, 2015; provided further, that in determining a
65 process for awarding grants, the department shall prioritize programs focused on providing
66 English language skills training to workers for in-demand jobs that require such skills; and
67 provided further, that the commissioner of elementary and secondary education may transfer
68 funds to item 7035-0002 and expend said funds subject to the conditions specified in said item in
69 the general appropriations act for the fiscal year ending on June 30, 2026

70\$10,000,000

71 1596-2515 For an early literacy high dosage tutoring initiative program directed by the
72 commissioner of elementary and secondary education; provided, that said program shall support
73 public schools and districts to partner with providers approved by the department of elementary
74 and secondary education to address pandemic-related learning loss and other identified
75 underperformance in order to support accelerated literacy growth for students in kindergarten to
76 grade 3, inclusive; provided further, that students characterized as below benchmark in grade 1
77 shall be prioritized; provided further, that funds shall only be awarded to support schools and
78 districts that have adopted a high-quality, evidence-based reading instructional model as defined
79 by the department; provided further, that funds may support activities including, but not limited
80 to: (i) providing early literacy tutoring services for students in kindergarten to grade 3, inclusive,

who have not met relevant benchmarks on early literacy screening assessments approved by the department of elementary and secondary education; (ii) statewide coordinating activities to a third party to facilitate high-quality implementation of the program; (iii) studying the impact of the tutoring provided; and (iv) providing foundational skills-focused tutoring that aligns with the research-backed characteristics of effective high-dosage tutoring practices; and provided further, that the department shall prioritize high-dosage tutoring for schools and districts serving a large proportion of high-needs students..... \$25,000,000

1596-2516 For a reserve to support reimbursements to school districts and direct payments to service providers for special education instructional and transportation costs pursuant to section 5A of chapter 71B of the General Laws and item 7061-0012; provided, that reimbursements shall be made in the fiscal year ending on June 30, 2026 for costs incurred in the fiscal year ending on June 30, 2025; and provided further, that funds may be transferred to said item 7061-0012 and expended subject to the conditions specified in said item 7061-0012 of the general appropriations act for the fiscal year ending on June 30, 2026\$190,000,000

1595-2522 For a program to provide supplemental grants for school construction projects previously approved for financing by the Massachusetts School Building Authority for projects experiencing extraordinary cost increases of materials due to inflation; provided, that notwithstanding any general or special law to the contrary, said program shall be made available in addition to amounts previously approved by the authority's board of directors for certain cities, towns and school districts with core program school facility projects in the authority's capital pipeline that have been impacted by unanticipated cost escalations; provided further, that said program shall be used to assist school districts with escalations incurred in connection with

104 school facility construction projects that previously received project scope and funding
105 agreement approval by the authority's board of directors; provided further, that notwithstanding
106 any general or special law to the contrary, the authority shall establish the rules and policies
107 related to said program and the criteria for determining a project's eligibility and the appropriate
108 amount of the supplemental grant; provided further, that the authority shall not award a
109 supplemental grant under this program to cities and towns not in compliance with the multi-
110 family zoning requirement established in section 3A of chapter 40A of the General Laws as
111 determined by the executive office of housing and livable communities; provided further, that
112 preference for supplemental grants under this program shall be given to cities and towns that are
113 taking meaningful steps to produce new housing or have adopted best practices to promote
114 sustainable housing development to be determined in consultation with the executive office of
115 housing and livable communities; provided further, that cities, towns and school districts shall
116 submit budget and project documentation to the authority in a form prescribed by the authority to
117 be eligible for grants from the program funded under this item; provided further, that the
118 authority, with the approval of its board of directors, may waive certain cost cap limits or other
119 grant limits that have been established as part of the program funded under this item; provided
120 further, that the amounts awarded to cities, towns and school districts from this item shall not be
121 calculated as part of the limit in section 7 of chapter 70B of the General Laws on the estimated
122 amount of grants approved by the authority during a fiscal year; and provided further, that not
123 later than May 31, 2026, the authority shall submit a report to the executive office for
124 administration and finance, the joint committee on education and the house and senate
125 committees on ways and means detailing grant award recipients and the amount of the grant
126 awarded for each project..... \$50,000,000

Department of Higher Education

1596-2525 For a capital program at public institutions of higher education in the commonwealth; provided, that projects supported under the program shall reduce the deferred maintenance backlog of said institutions; provided further, that said projects may include, but shall not be limited to: (i) building envelope repairs and renovations; (ii) heating, ventilation and air conditioning systems replacement; (iii) Americans with Disabilities Act accessibility compliance projects; (iv) electrical systems repair and replacement; and (v) water and wastewater systems repair and replacement; provided further, that the program shall be administered by the division of capital asset management and maintenance in collaboration with the executive office of education; provided further, that the division of capital asset management and maintenance may expend funds from this item for the defeasance of debt in order to enable projects that reduce campus deferred maintenance backlogs; provided further, that not less than \$10,000,000 shall be expended for an expanded nursing simulation lab at the University of Massachusetts at Amherst; provided further, that not less than \$4,000,000 shall be expended for a combined health services and public safety facility at the University of Massachusetts at Dartmouth; provided further, that not less than \$10,000,000 shall be expended for laboratory modernization and upgrades at community colleges; provided further, that not less than \$3,000,000 shall be expended for capital improvements and infrastructure upgrades at the Reggie Lewis Track and Athletic Center at Roxbury Community College; provided further, that not less than \$10,000,000 shall be expended for repairs and renovations at the Massachusetts College of Art and Design; provided further, that not less than \$6,600,000 shall be expended for debt defeasance, revitalization or adaptive reuse of dormitory housing at Framingham State University; and provided further, that not later than December 1, 2026, the division of capital

150 asset management and maintenance shall submit a report to the joint committee on higher
151 education and the house and senate committees on ways and means that shall include, but not be
152 limited to: (a) the amounts awarded delineated by campus; (b) the amounts awarded delineated
153 by project; (c) the amount of deferred maintenance backlog eliminated by project; and (d)
154 planned spending from this item through June 30, 2028..... \$175,000,000

155 TRANSPORTATION

156 Massachusetts Department of Transportation

157 1595-2508 For an operating transfer to the Massachusetts Bay Transportation Authority
158 to replenish the Massachusetts Bay Transportation Authority deficiency fund; provided, that the
159 Massachusetts Bay Transportation Authority shall notify the Massachusetts Department of
160 Transportation, executive office for administration and finance, house and senate committees on
161 ways and means and the joint committee on transportation not less than 30 days prior to
162 withdrawing funds from the Massachusetts Bay Transportation Authority deficiency fund; and
163 provided further, that not later than June 30, 2025, the Massachusetts Bay Transportation
164 Authority shall submit a written deficiency fund policy to the Massachusetts Department of
165 Transportation, the executive office for administration and finance, the joint committee on
166 transportation and the house and senate committees on ways and means.....\$200,000,000

167 1596-2503 For an operating transfer to the Massachusetts Transportation Trust Fund
168 established in section 4 of chapter 6C of the General Laws for a program of culvert and small
169 bridge modernization, reconstruction, removal, repair, replacement and resilience improvements
170 to culverts and small bridges with a span of not more than 20 feet under procedures established
171 by the Massachusetts Department of Transportation in collaboration with the executive office of

172 energy and environmental affairs; provided, that expenditures from this item may include the
173 costs of engineering, design, permitting, climate change adaptation and resilience and other
174 services essential to projects under this item; provided further, that funds may be expended from
175 this item for matching grants to municipalities for municipally-owned small bridges and culverts;
176 provided further, that funds from this item shall not be expended to municipalities not in
177 compliance with the multi-family zoning requirement established in section 3A of chapter 40A
178 of the General Laws as determined by the executive office of housing and livable communities;
179 provided further, that preference for grants shall be awarded to cities and towns that are taking
180 meaningful steps to produce new housing or have adopted best practices to promote sustainable
181 housing development as determined by the Massachusetts Department of Transportation in
182 consultation with the executive office of housing and livable communities; and provided further,
183 that not later than March 30, 2026, the Massachusetts Department of Transportation shall submit
184 a report to the joint committee on transportation and the house and senate committees on ways
185 and means that shall include, but not be limited to: (i) the criteria used for distributing funds from
186 this item; and (ii) a list and description of projects funded through this item or planned to be
187 funded through this item, including the estimated costs for each project and the expected timeline
188 for completion of each project \$25,000,000

189 1596-2505 For an operating transfer to the Massachusetts Transportation Trust Fund
190 established in section 4 of chapter 6C of the General Laws for a program to support grants for
191 workforce and training initiatives at regional transit authorities and support transit improvements
192 across the commonwealth; provided, that the Massachusetts Department of Transportation shall
193 oversee the distribution of grants under this item; and provided further, that not later than March
194 2, 2026, the department shall submit a report to the joint committee on transportation and the

195 house and senate committees on ways and means that shall include, but not be limited to: (i) the
196 grant criteria used to determine awards; (ii) a list of grant recipients, including the amounts
197 received by each recipient; and (iii) a description of the specific uses by each
198 recipient.....\$25,000,000

199 1596-2507 For local one-time transportation projects..... \$100,000

200 1596-2520 For an operating transfer to the Massachusetts Transportation Trust Fund
201 established in section 4 of chapter 6C of the General Laws for a program to support grants for
202 capital infrastructure improvements and equipment and facilities upgrades at regional transit
203 authorities to support transit improvements across the commonwealth; provided further, that
204 projects approved under this item shall include, but not be limited to: (i) the purchase of new
205 buses, including electric or hybrid buses; (ii) upgrades to electrical infrastructure to facilitate
206 charging of electric buses; (iii) capital projects to support microtransit initiatives and last mile
207 transportation solutions; and (iv) improvements to bus stops and stations to promote pedestrian
208 safety, user comfort, and Americans with Disabilities Act compliance; provided further, that the
209 Massachusetts Department of Transportation shall oversee the distribution of funds; and
210 provided further, that not later than March 1, 2026, the department shall submit a report to the
211 joint committee on transportation and the house and senate committees on ways and means that
212 shall include, but not be limited to: (i) the grant criteria used to determine awards; (ii) a list of
213 grant recipients, including the amounts received by each recipient; and (iii) a description of the
214 specific uses by each recipient \$50,000,000

215 1596-2521 For an operating transfer to the Massachusetts Transportation Trust Fund
216 established in said section 4 of said chapter 6C for a program to support improvements to water

217 transportation infrastructure across the commonwealth; provided, that funds shall be expended
218 for projects that enable transitioning seasonal ferry services operated by or under contract with
219 the Massachusetts Bay Transportation Authority to year-round operations; provided further, that
220 not less than \$16,000,000 shall be expended for the procurement of ferries to support and
221 maintain quality water transportation services in the commonwealth; provided further, that said
222 ferries shall be procured by the Massachusetts Department of Transportation but may be
223 operated by service providers under contract with the department; provided further, that said
224 ferries shall be utilized to expand commuter ferry services to communities that may include, but
225 not be limited to: (i) the East Boston section of the city of Boston; (ii) the city of Chelsea; (iii)
226 the city of Lynn; (iv) the city known as the town of Winthrop; (v) the city of Quincy; and (vi) the
227 city of Salem; provided further, that the Massachusetts Department of Transportation shall
228 prioritize expanded service for cities and towns that are taking meaningful steps to produce new
229 housing and have adopted best practices to promote sustainable housing development including,
230 but not limited to, the multifamily zoning requirement established in section 3A of chapter 40A
231 of the General Laws; and provided further, that funds shall be expended for port infrastructure
232 necessary to maintain and expand ferry services statewide..... \$20,000,000

233 1596-2523 For an operating transfer to the Massachusetts Transportation Trust Fund
234 established in section 4 of chapter 6C of the General Laws for the construction and
235 reconstruction of municipal ways as described in clause (b) of the second paragraph of said
236 section 4 of said chapter 6C; provided, that a city or town shall comply with the procedures
237 established by the Massachusetts Department of Transportation; provided further, that a city or
238 town may expend, without further appropriation, for these projects, amounts not in excess of the
239 amount provided to the city or town under this item upon preliminary notice of such amount,

240 which shall be provided by the department to the city or town not later than March 2, 2026;
241 provided further, that the commonwealth shall reimburse a city or town under this item, subject
242 to the availability of funds as provided in section 9G of chapter 29 of the General Laws, within
243 30 days after receipt by the department of a request for reimbursement from the city or town,
244 which shall include certification by the city or town that actual expenses have been incurred on
245 projects eligible for reimbursement under this item and that the work on such eligible projects
246 has been completed to the satisfaction of the city or town according to the specifications of the
247 project and in compliance with applicable laws and procedures established by the department;
248 provided further, that not less than \$82,500,000 shall be distributed using a formula based on
249 each municipality's population, locally-owned road miles and employment; provided further, that
250 not less than \$82,500,000 shall be distributed using a formula based on each municipality's share
251 of road mileage; and provided further, that funds from this item shall not be expended to
252 municipalities not in compliance with the multi-family zoning requirement established in section
253 3A of chapter 40A of the General Laws as determined by the executive office of housing and
254 livable communities\$165,000,000

255 1596-2524 For improvements to the commuter rail system infrastructure of the
256 Massachusetts Bay Transportation Authority; provided, that the authority shall consult and
257 receive approval from the executive office for administration and finance on the projects to be
258 funded by this appropriation; provided further, that in distributing funds from this item, the
259 authority shall prioritize projects that advance a rail system that is fully integrated into the
260 commonwealth's transportation system and designed to make the system more productive,
261 equitable and decarbonized; provided further, that funds shall be expended to facilitate the
262 electrification of commuter rail; provided further, that preference for improvement projects,

263 including, but not limited to, improvements to commuter rail stations, shall be awarded to cities
264 and towns that are taking meaningful steps to produce new housing and have adopted best
265 practices to promote sustainable housing development including, but not limited to, the
266 multifamily zoning requirement established in section 3A of chapter 40A of the General Laws;
267 and provided further, that not later than April 1, 2026, the authority shall submit a report to the
268 joint committee on transportation and the house and senate committees on ways and means that
269 shall include, but not be limited to: (a) the criteria used for distributing funds from this item; and
270 (b) a list and description of the projects funded through this item or planned to be funded through
271 this item, including the estimated cost for each project and the expected timeline for the
272 completion of each project..... \$50,000,000

273 1596-2526 For an operating transfer to the Massachusetts Transportation Trust Fund
274 established in section 4 of chapter 6C of the General Laws for a program to support grants for
275 capital microtransit initiatives and last mile transportation solutions including, but not limited to,
276 providers that: (i) expand mobility options for rural communities; (ii) extend service to veterans,
277 working families, older adults, people with disabilities and low-income individuals; (iii) provide
278 mobility choices to people with mobility needs; and (iv) extend equitable and affordable
279 transportation mobility improvements in the commonwealth; provided, that preference for grants
280 shall be awarded to cities and towns that are taking meaningful steps to produce new housing and
281 have adopted best practices to promote sustainable housing development including, but not
282 limited to, the multifamily zoning requirement established in section 3A of chapter 40A of the
283 General Laws\$10,000,000

284 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

285 Reserves

286 1596-2026 For a reserve for publicly incurred transportation costs associated with the
287 2026 World Cup matches hosted in Massachusetts; provided, that the Massachusetts Department
288 of Transportation shall prioritize commuter rail infrastructure and service improvements to
289 Foxborough that increase service capacity, frequency and reliability.....\$5,000,000

290 SECTION 3. Notwithstanding any general or special law to the contrary, income surtax
291 revenue, as defined in section 2BBBBBB of chapter 29 of the General Laws, collected in the
292 fiscal year ending on June 30, 2024 but certified after July 20, 2024, shall be transferred to the
293 Education and Transportation Innovation and Capital Fund established in section 2DDDDDD of
294 said chapter 29 from the Student Opportunity Act Investment Fund established in section 35RRR
295 of chapter 10 of the General Laws, not later than 30 days after the effective date of this act.